

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
SVEN RUPPNER

Plaintiff

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT and SERGEANT JOHN RAJAN

Defendants

-----X

To the above-named Defendant(s)

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within **20** days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated, February 3, 2020

Defendant's address:

THE CITY OF NEW YORK
100 CHURCH STREET
NEW YORK, NY 10007

THE NEW YORK CITY POLICE DEPARTMENT
C/O THE CITY OF NEW YORK
100 CHURCH STREET
NEW YORK, NY 10007

SERGEANT JOHN RAJAN
C/O CORPORATION COUNSEL
100 CHURCH STREET
NEW YORK, NY 10007

Index No.
Date Purchased

Plaintiff(s) designate(s)
QUEENS
County as the place of trial.

The basis of the venue is
SITUS OF OCCURRENCE/INCIDENT

SUMMONS

Plaintiff(s) reside(s) at
32-08 78th Street
Jackson Heights, NY 11370
County of QUEENS


JERRY CHRISAFIS, ESQ.
Attorney for Plaintiff
SVEN RUPPNER
21-83 Steinway Street
Astoria, NY 11105
Tel. (718) 726-4600

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
SVEN RUPPNER

Plaintiff

Index No.:

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT and
SERGEANT JOHN RAJAN

Defendants

-----X
The plaintiff, **SVEN RUPPNER**, by and through his attorney, **JERRY CHRISAFIS, ESQ.**, complaining of the defendants, **THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT and SERGEANT JOHN RAJAN**, alleges as follows:

1. That the plaintiff, **SVEN RUPPNER**, is a resident of the County of Queens, City and State of New York.
2. That at all times hereinafter mentioned, the defendant, **THE CITY OF NEW YORK**, was a municipal corporation duly organized and existing under, pursuant to and by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned, the defendant, **NEW YORK CITY POLICE DEPARTMENT**, was an agency, department and integral part of the defendant, **THE CITY OF NEW YORK**.
4. That all of the conditions precedent to the bringing of this lawsuit, have been met, and more particularly on March 6, 2019, with respect to both defendants, **THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT**, and within 90 days after the claim herein sued upon arose, plaintiff caused a Verified Notice of Claim, in writing sworn to on

behalf of the plaintiff, to be served upon the defendants, **THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT**, personally, which said Notice of Claim set forth the name and post office address of the plaintiff, the nature of the claim, the time when, the place where and in the manner in which the claim arose and items of damage so far as they are practicable. That at least 30 days have passed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment or settlement of this action or payment thereof has been neglected or refused by the defendant. That pursuant to the General Municipal Law, a 50-H Hearing was held on November 25, 2019. That this action was commenced within one (1) year and ninety (90) days after the happening of the event on which the claim is based, which said occurrence took place on December 13, 2018.

5. That at all times hereinafter mentioned, including but not limited to December 13, 2018, the defendant, **SERGEANT JOHN RAJAN**, was acting in his capacity as a Police Officer, agent, licensee, permittee, servant and/or employee of the defendants, **THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT**, herein.

6. That at all times hereinafter mentioned, including but not limited to December 13, 2018, the defendant, **SERGEANT JOHN RAJAN**, was acting under the color of law and pursuant to his authority, duty and responsibility as an agent, Police Officer, licensee, permittee, employee and/or servant of the defendants, **THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK**.

7. That at all times hereinafter mentioned, including but not limited to December 13, 2018, the defendant, **SERGEANT JOHN RAJAN**, was in the course, furtherance of and within the scope of his employment as an agent, Police Officer, licensee, permittee, employee and/or

servant of the defendants, **THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK.**

8. That on December 13, 2018, the plaintiff, **SVEN RUPPNER**, was the owner of and resided at a property, building and premises known as 32-08 78th Street, Jackson Heights, NY 11370.

9. That on December 13, 2018, at approximately 1:13 P.M., while the plaintiff, **SVEN RUPPNER**, was sitting on a Delta plane at JFK Airport, as soon as the plane landed, he was contacted by the defendant, **SERGEANT JOHN RAJAN**, regarding a complaint that was filed by his mother, Sonia Ruppner, alleging that the week before, the plaintiff, **SVEN RUPPNER**, had come to her house located at 31-38 77th Street, Jackson Heights, NY 11370, and had both threatened and assaulted her with a revolver. That the defendant, **SERGEANT JOHN RAJAN**, informed the plaintiff that he needed to come to the plaintiff, **SVEN RUPPNER'S** house and confiscate the weapon as a result of the complaint having been filed by Sonia Ruppner.

10. That the plaintiff then immediately contacted his legal counsel, Ed Kratt, Esq., who then proceeded to speak to the defendant, **SERGEANT JOHN RAJAN**. That Ed Kratt, Esq. informed the defendant, **SERGEANT JOHN RAJAN**, that at the time, date and place of the alleged assault and threat that was allegedly committed by the plaintiff, **SVEN RUPPNER**, against his mother, Sonia Ruppner, he was in fact out of the country, more specifically in the Country of Greece.

11. That defendant, **SERGEANT JOHN RAJAN**, advised Ed Kratt, Esq. that he knew that the plaintiff, **SVEN RUPPNER**, was the owner of a rifle. That Ed Kratt, Esq. further advised the defendant, **SERGEANT JOHN RAJAN**, that the plaintiff had documentation/proof of this, more specifically his Passport and boarding pass. That defendant, **SERGEANT JOHN**

RAJAN, informed Ed Kratt, Esq. that if the plaintiff, **SVEN RUPPNER**, could prove his whereabouts on the date he allegedly threatened and assaulted his mother with a revolver, he would not arrest him. That in either case, the plaintiff, **SVEN RUPPNER**, needed to recover the weapon, which he told Ed Kratt, Esq. was in fact a rifle, from the premises.

12. That on December 13, 2018, at approximately 4:00 P.M., defendant, **SERGEANT JOHN RAJAN**, and several other Police Officers of the 115th Precinct were in fact waiting for the plaintiff in front of his house. That the plaintiff, **SVEN RUPPNER**, presented the defendant, **SERGEANT JOHN RAJAN**, with his Passport and boarding pass which showed that the plaintiff, **SVEN RUPPNER**, was in fact out of the Country in Greece on the date of the alleged assault.

13. That the defendant, **SERGEANT JOHN RAJAN**, ignored the documentation, namely the Passport and boarding pass, and used same as an excuse/ruse/justification/ trick and/or as a pretense to gain access into the plaintiff, **SVEN RUPPNER'S** house. That the defendant, **SERGEANT JOHN RAJAN**, directed the plaintiff, **SVEN RUPPNER**, to go into the house accompanied by the defendant, **SERGEANT JOHN RAJAN**, and other Police Officers and present the weapon which the defendant had told the plaintiff, **SVEN RUPPNER**, was a rifle, and which weapon was owned and properly registered by the plaintiff, **SVEN RUPPNER**, herein.

14. That on December 13, 2018, at approximately 4:00 P.M., the defendant, **SERGEANT JOHN RAJAN**, and several other officers of the 115th Precinct, while in the course, furtherance of and within the scope of their employment, acting under color of law pursuant to their authority, duties and responsibilities in their respective capacities as Police Officers, agents, servants, employees, licensees and/or permittees of the defendants, **THE NEW**

YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK, entered the plaintiff's basement without his permission and/or consent therein.

15. That at all times hereinafter mentioned, including but not limited to December 13, 2018, the defendant, **SERGEANT JOHN RAJAN**, and several other officers of the 115th Precinct, were acting without any legal authority, justification, provocation, reason, cause and/or probable cause, a Court order and/or search warrant, and did wrongfully, negligently, recklessly, carelessly, illegally, unlawfully and intentionally enter and trespass upon to search, and did in fact unlawfully search the plaintiff, **SVEN RUPPNER'S** basement located within the premises, property and building known as 32-08 78th Street, Jackson Heights, NY 11370.

16. The plaintiff was then directed by the defendant, **SERGEANT JOHN RAJAN**, to open up the safe located in said basement of the premises. That the plaintiff complied with the defendant, **SERGEANT JOHN RAJAN'S** demand and did so. That in said safe, the defendant, **SERGEANT JOHN RAJAN**, found the rifle that was owned and properly registered by the plaintiff, **SVEN RUPPNER**, as well as other rifles and shotguns that had not been properly registered in the City of New York, due to a clerical error.

17. That on December 13, 2018, at approximately 4:00 P.M., the defendant, **SERGEANT JOHN RAJAN**, and several other officers of the 115th Precinct, while in the course, furtherance of and within the scope of their employment, acting under color of law pursuant to their authority, duties and responsibilities in their respective capacities as Police Officers, agents, servants, employees, licensees and/or permittees of the defendants, **THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK**, entered the plaintiff's bedroom without his permission and/or consent therein.

18. That at all times hereinafter mentioned, including but not limited to December 13, 2018, the defendant, **SERGEANT JOHN RAJAN**, and several other officers of the 115th Precinct, were acting without any legal authority, justification, provocation, reason, cause and/or probable cause, a Court order and/or search warrant, and did wrongfully, negligently, recklessly, carelessly, illegally, unlawfully and intentionally enter and trespass upon to search, and did in fact unlawfully search the plaintiff, **SVEN RUPPNER'S** bedroom located within the premises, property and building known as 32-08 78th Street, Jackson Heights, NY.

19. That the defendant, **SERGEANT JOHN RAJAN**, then directed the plaintiff, **SVEN RUPPNER**, to open up the safe in his bedroom. That plaintiff, **SVEN RUPPNER**, complied with the defendant, **SERGEANT JOHN RAJAN'S** demand and did so. That said safe contained 1 rifle and 1 shotgun that were owned by the plaintiff, but had not been properly registered in the City of New York due to a clerical error therein.

20. That on December 13, 2018, the plaintiff, **SVEN RUPPNER**, did not own and/or possess a revolver and informed Sergeant Rajan of same, the one that was allegedly used in the assault of his mother, just rifles and shotguns that were in fact found by the defendant, **SERGEANT JOHN RAJAN**. That additionally at no time during the illegal and unlawful entry and search of the plaintiff's premises did the defendant, **SERGEANT JOHN RAJAN**, and/or any of the other officers who were with and accompanied the defendant, **SERGEANT JOHN RAJAN**, ever recover, find, retrieve and/or locate a revolver at the plaintiff's premises, property and building known as and located at 32-08 78th Street, Jackson Heights, NY 11370.

21. That for a second time, the plaintiff attempted to prove to defendant, **SERGEANT JOHN RAJAN**, that he was in fact out of the country in Greece on the date of the alleged assault on his mother, by showing same his Passport and boarding pass. That once again, defendant,

SERGEANT JOHN RAJAN, ignored this documentation, namely the Passport and boarding pass of the plaintiff and proceeded to both detain and arrest the plaintiff who did not resist the unlawful and false detainment, imprisonment, confinement and arrest herein.

22. Thus, defendant, **SERGEANT JOHN RAJAN**, had no legal and/or valid reason for gaining entry into the plaintiff's house. That being the case, the arrest of the plaintiff, **SVEN RUPPNER**, by defendant, **SERGEANT JOHN RAJAN**, on December 13, 2018 at 4:00 P.M., for the improper registration of his weapons was in fact unlawful and illegal. That without any legal authority, justification, provocation, reason, cause and/or probable cause, a Court Order and/or a search warrant, permission and/or consent of the plaintiff, **SVEN RUPPNER**, did unlawfully and illegally enter, trespass upon and unlawfully search the plaintiff's premises, property and building known as and located at 32-08 78th Street, Jackson Heights, NY 11370. That all of the plaintiff's weapons were in fact properly registered after the arrest of the plaintiff, **SVEN RUPPNER**, herein.

23. That the defendants, **THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT**, acting by and through its agents, servants, employees, licensees and/or permittees, more specifically the defendant, **SERGEANT JOHN RAJAN**, negligently, carelessly and recklessly had the plaintiff handcuffed and arrested for "AC 10-303 (UM) Permits for possession & purchase of rifles and shotguns (5 counts)---dispose of any rifle or shotgun to any person where such person was not the holder of a permit for possession and purchase of rifles and shotguns; did have in his or her possession any rifle or shotgun where such person was not the holder of a permit for the possession and purchase of rifles and shotguns", as well as initially for aggravated harassment.

24. That the plaintiff was then unlawfully and illegally arrested and handcuffed, and was first taken to the 115th Precinct and then to Central Booking. The plaintiff was unlawfully and falsely arrested, detained, imprisoned, confined and incarcerated by the agents, servants, employees, licensees and/or permittees, Police Officers of the City of New York and the New York City Police Department and was put through the entire arrest process, where he was booked, fingerprinted, had his picture taken and again unlawfully and wrongfully questioned and interrogated therein.

25. That the defendants, **THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT**, its agents, servants, employees, licensees and/or permittees negligently, carelessly and recklessly violated the plaintiff, **SVEN RUPPNER'S** State and City constitutional rights during the time of the plaintiff, **SVEN RUPPNER'S** unlawful and illegal arrest, incarceration, detention, confinement and imprisonment as follows: first in/at the 115th Precinct and then at Central Booking both located in Queens, New York, where he was denied his constitutional right to make a phone call by various members, Police Officers, agents, servants, employees, licensees and permittees of the defendants, **THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT**, including but not limited to defendant, **SERGEANT JOHN RAJAN**, and other Police Officers, despite his repeated requests to do so.

26. That as a result of the unlawful, illegal, wrongful and false arrest by the **TWO (2) UNDERCOVER NEW YORK CITY AGENTS, EMPLOYEES AND/OR POLICE OFFICERS**, of the plaintiff, **SVEN RUPPNER**, he was subsequently illegally, unlawfully, falsely and wrongly imprisoned, confined, detained and incarcerated for a period of

approximately 28 hours in total, first at the 115th Precinct and then at Central Booking both located in Queens, New York, deprived of his freedom and liberty during this time period herein.

27. That due to the following factors: 1) the false arrest, detention of the plaintiff, **SVEN RUPPNER**, by the defendants, **THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, SERGEANT JOHN RAJAN and OTHER NEW YORK CITY AGENTS, EMPLOYEES AND/OR POLICE OFFICERS**, and 2) the resulting, subsequent and wrongful imprisonment, confinement and incarceration of the plaintiff, **SVEN RUPPNER**, in both the 115th Precinct and then at Central Booking in Queens for a period of approximately 28 hours, he was caused and obligated to obtain and hire legal counsel in order to properly and adequately defend herself against the criminal charges and/or crimes that he was wrongfully accused of by the defendants, **THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, SERGEANT JOHN RAJAN, and OTHER NEW YORK CITY AGENTS, EMPLOYEES AND/OR POLICE OFFICERS**, therein.

28. That the plaintiff, **SVEN RUPPNER**, had to expend monies and did in fact pay legal fees to a criminal attorney, namely Ed Kratt, Esq., in the sum of \$5,000.00 to fight the criminal charges that were filed against same and in the subsequent/ensuing criminal case.

29. That the criminal case was resolved, upon information and belief, on April 25, 2019, when the plaintiff, **SVEN RUPPNER**, received an ACD (Adjournment in Contemplation of Dismissal) in Queens Criminal Court Part AP-1. That six months later on October 29, 2019, the criminal case against the plaintiff, **SVEN RUPPNER**, was dismissed by ACD and the record sealed therein.

30. That at the time and place of the incident, and at all times hereinafter mentioned, including but not limited to December 13, 2018, the defendant, **SERGEANT JOHN RAJAN**,

and/or other New York City agents, employees and/or Police Officers, were employees, licensees, agents, permittees and servants of the defendants, **THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT**, and were in the course, furtherance of and within the scope of their employment, acting under the color of law and pursuant to their authority, duties and responsibilities in their respective capacities as New York City Police Officers, when they negligently, carelessly and recklessly wrongfully and without any legal justification, provocation, reason, cause, probable cause, a Court Order and/or search warrant, did falsely and unlawfully arrest and then detain, imprison, confine and incarcerate the plaintiff, **SVEN RUPPNER**, violating both his State and Federal Civil and Constitutional rights, including but not limited to depriving the plaintiff of his freedom and liberty for a period of 28 hours, and his constitutional right to make a phone call despite his repeated requests to do so, and acted negligently, recklessly, carelessly, wrongfully and intentionally in effecting both the arrest and the subsequent detention, incarceration, confinement and imprisonment of the plaintiff, **SVEN RUPPNER**, herein.

31. That the aforesaid conduct by/of the defendant, **SERGEANT JOHN RAJAN**, and/or the other New York City agents, employees and/or Police Officers were committed under the color of law within and pursuant to the authority vested in them by the defendants, **THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT**, as servants, employees, licensees, permittees and/or agents and **POLICE OFFICERS** of the defendants, **THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT**, therein.

32. The defendants, **THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT**, were further negligent, careless and reckless as follows: 1) in

wrongfully hiring, 2) continuing the employment of, 3) failing to train and/or failing to properly train, 4) failing to supervise and/or failing to properly supervise, and 5) failing to investigate and/or to conduct the proper investigation of the defendants, **TWO (2) UNDERCOVER NEW YORK CITY AGENTS, EMPLOYEES AND/OR POLICE OFFICERS**, prior to hiring both of them and during their respective period of employment, in total disregard for the public at large and the plaintiff, **SVEN RUPPNER**, in particular, and thus causing the unlawful conduct and resulting damages herein.

33. That the negligent, carelessness and recklessness actions, conduct and behavior of the defendant, **SERGEANT JOHN RAJAN**, and/or the other New York City agents, employees and/or Police Officers, resulted in the violation and deprivation of both of the plaintiff, **SVEN RUPPNER**, State and Federal Civil and Constitutional rights and was and is tantamount to 1) false, unlawful, illegal and wrongful arrest and subsequent imprisonment, detention, confinement and incarceration of the plaintiff, **SVEN RUPPNER**, for a period of 28 hours; 2) damage to his reputation; 3) loss of enjoyment of life; 4) invasion of privacy; 5) humiliation and embarrassment; 6) abuse of process; and 7) unlawful search of both the plaintiff's basement and/or bedroom in his premises herein.

34. That the defendant, **SERGEANT JOHN RAJAN**, and/or the other New York City agents, employees and/or Police Officers, actions and conduct in falsely, unlawfully, illegally and wrongfully arresting the plaintiff, **SVEN RUPPNER**, and his subsequent imprisonment, detention, confinement and incarceration in Police custody, wherein he was deprived of his freedom and liberty for a period of 28 hours, not allowing the plaintiff to make a phone call, despite her repeated requests to do so, were negligent, careless and reckless on the part of the

defendants, **THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT and SERGEANT JOHN RAJAN**, herein.

35. That the defendant, **SERGEANT JOHN RAJAN**, and/or the other New York City agents, employees and/or Police Officers, actions and conduct in falsely, unlawfully, illegally and wrongfully restraining and arresting the plaintiff, **SVEN RUPPNER**, and his subsequent imprisonment, detention, confinement and incarceration in Police custody, wherein he was allegedly restrained and deprived of his freedom and liberty for a period of 28 hours, not allowing the plaintiff to make a phone call, despite his repeated requests to do so, were a violation of plaintiff, **SVEN RUPPNER'S** rights by the defendants, **THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT and SERGEANT JOHN RAJAN**, and/or the other New York City agents, employees and/or Police Officers, under the laws of both State of New York/New York State Constitution and the laws of the United States/Federal Constitution herein.

36. The aforesaid acts and conduct of the defendants, **THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT and SERGEANT JOHN RAJAN**, and/or the other New York City agents, employees and/or Police Officers, constituted and were tantamount to an illegal, false and wrongful imprisonment, incarceration, confinement, detention, restraint and deprivation of the plaintiff, **SVEN RUPPNER'S** freedom and liberty herein.

37. That the damage caused to plaintiff, **SVEN RUPPNER**, by the abovementioned acts, actions and/or behavior could have been prevented by reasonable diligence of the defendants, **THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT**, its agencies and institutions, through the implementation of reasonable effective programs relating to the screening, training and supervision of the defendant,

SERGEANT JOHN RAJAN, and/or the other New York City agents, employees and/or Police Officers herein.

38. That furthermore the failure of **THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT**, to engage in or provide the aforesaid reasonable effective programs constitutes negligence, reckless and carelessness on the part of the defendants under the laws of the State of New York herein.

AS AND FOR A FIRST CAUSE OF ACTION

39. That solely and as a direct and proximate result of the negligence, carelessness and recklessness of the defendants, **THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT and SERGEANT JOHN RAJAN**, and/or the other New York City agents, employees and/or Police Officers, the plaintiff, **SVEN RUPPNER**, was damaged as follows: same was caused to expend monies, hire and retain a criminal defense attorney, namely Edward Kratt, Esq., to defend himself against the wrongful charges filed against him in the ensuing criminal action.

40. That as a result of the above, the plaintiff, **SVEN RUPPNER**, has been damaged in the sum of FIVE THOUSAND (\$5,000.00) DOLLARS herein.

AS AND FOR A SECOND CAUSE OF ACTION

41. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "40" with the same force and effect as if set forth more fully at length herein.

42. That solely and as a direct and proximate result of the negligence, carelessness and recklessness of the defendants, **THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT and SERGEANT JOHN RAJAN**, and/or other New York City

agents, employees and/or Police Officers, the plaintiff was falsely, unlawfully, illegally and wrongfully arresting the plaintiff, **SVEN RUPPNER**, and his subsequent imprisonment, detention, confinement and incarceration in Police custody, wherein he was allegedly restrained and deprived of his freedom and liberty for a period of 28 hours, not allowing the plaintiff to make a phone call, despite his repeated requests to do so, were a violation of plaintiff, **SVEN RUPPNER'S** rights by the defendants, **THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT and SERGEANT JOHN RAJAN**, and/or the other New York City agents, employees and/or Police Officers, under the laws/Constitution of both State of New York and the laws of the United States/Federal Constitution herein.

43. That solely and as a direct and proximate result of the negligence, recklessness and carelessness of the defendants, **THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT and SERGEANT JOHN RAJAN**, and/or the other New York City agents, employees and/or Police Officers, as set forth herein, the plaintiff, **SVEN RUPPNER**, was caused to be rendered sick, sore, lame, permanently disabled, and sustained serious, severe and permanent injuries, including but not limited to the suffering of psychological damages, deprivation of his freedom/liberty, damages to his reputation, invasion of privacy, loss of enjoyment of life, anxiety, humiliation, embarrassment, and was and will be for a long time to come, incapacitated from attending to his usual duties and activities herein.

44. That as a result of the above, the plaintiff, **SVEN RUPPNER**, has been damaged in an amount that exceeds the monetary and jurisdictional limits of all lower Courts and tribunals herein.

AS AND FOR A THIRD CAUSE OF ACTION

45. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "44" with the same force and effect as if set forth more fully at length herein.

46. That the plaintiff, **SVEN RUPPNER**, owns a successful trucking school/business and building maintenance business. That due to and as a result of his arrest, he has been advised by prospective business contacts, associates, City and State governmental agencies, that while his criminal case was pending, he no longer was allowed to come into certain places/programs to conduct presentations where he recruits prospective clients to train same in either the building maintenance business and/or the trucking business (learning how to operate a truck). That this has cost and is continuing to cost the plaintiff, **SVEN RUPPNER**, thousands of dollars in income, since each successful recruit of a client results in about \$8,000.00 to the plaintiff, **SVEN RUPPNER'S** business therein.

47. That as a result of the above, the plaintiff, **SVEN RUPPNER**, has been damaged in the amount of One Million (\$1,000,000.00) Dollars herein.

AS AND FOR A FOURTH CAUSE OF ACTION

48. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "47" with the same force and effect as if set forth more fully at length herein.

49. That the plaintiff, **SVEN RUPPNER**, sustained damage to his reputation and business, emotional distress, invasion of privacy, humiliation and embarrassment as a result of the above actions and conduct of the agents, servants, employees, licensees and/or permittees, Police Officers of **THE CITY OF NEW YORK, THE NEW YORK CITY POLICE**

DEPARTMENT, SERGEANT JOHN RAJAN and/or other New York City Police Officers.

The plaintiff, **SVEN RUPPNER**, suffered and sustained damages in connection with the false, unlawful, illegal and wrongful arrest, and subsequent imprisonment, detention, deprivation of his liberty, confinement and incarceration of the plaintiff, **SVEN RUPPNER**, in Police custody for a period of more than 28 hours both in the 115th Precinct and Central Booking in Queens.

50. That as a result of the above, the plaintiff, **SVEN RUPPNER**, has been damaged in an amount that exceeds the monetary and jurisdictional limits of all lower Courts and tribunals herein.

WHEREFORE, plaintiff, **SVEN RUPPNER**, demands judgment against the defendants, **THE CITY OF NEW YORK, THE NEW YORK CITY POLICE**

DEPARTMENT and **SERGEANT JOHN RAJAN** and/or other New York City Police

Officers, agents, servants, employees, licensees and/or permittees of the defendant, **THE CITY**

OF NEW YORK and **THE NEW YORK CITY POLICE DEPARTMENT**, as follows: 1)

On the First Cause of Action in the sum of Five Thousand (\$5,000.00) Dollars; 2) On the Second

Cause of Action in an amount that exceeds the monetary and jurisdictional limits of all lower

Courts and tribunals herein; 3) On the Third Cause of Action in the sum of One Million

(\$1,000,000.00) Dollars herein; and 4) On the Fourth Cause of Action in an amount that exceeds

the monetary and jurisdictional limits of all lower Courts and tribunals herein, together with the

interest, costs and disbursements of this action.

Date: February 3, 2020
Queens, New York


JERRY CHRISAFIS, ESQ.
Attorney for Plaintiff
SVEN RUPPNER
21-83 Steinway Street
Astoria, New York 11105
Tel.: (718) 726-4600

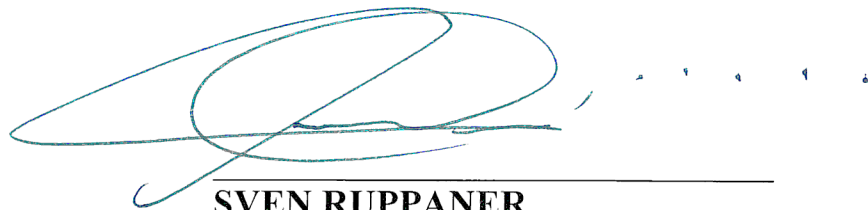
VERIFICATION

State of New York)
County of Queens) ss:

SVEN RUPPNER deposes and states under penalty of perjury:

I have read the foregoing **SUMMONS & VERIFIED COMPLAINT**, and it is true, except as to matters alleged upon information and belief, as to those matters I believe them to be true.

Dated: February 3, 2020
Queens, New York

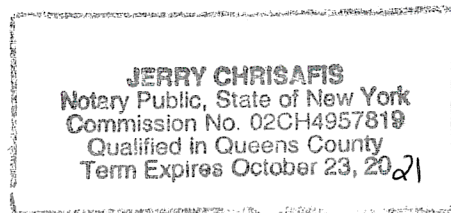


SVEN RUPPNER

Sworn to before me this 3rd
day of February, 2020



Notary Public



Index Number:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

SVEN RUPPNER

Plaintiff

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT
and SERGEANT JOHN RAJAN

Defendants

SUMMONS & VERIFIED COMPLAINT

Dated: February 3, 2020

JERRY CHRISAFIS, ESQ.

Attorney for Plaintiff(s)
21-83 Steinway Street
Astoria, New York 11105
(718) 726-4600

Service of a copy of the within
Dated,
Attorney(s) for

is hereby admitted.

NOTICE OF ENTRY

Sir: Please take notice
that the within is a (**certified**) true copy of a
duly entered in the office of the clerk of the within named court on
Dated,
Yours, etc.,

JERRY CHRISAFIS, ESQ.

Attorney for: Plaintiff(s)
21-83 Steinway Street
Astoria, New York 11105

TO:
Attorney(s) for:

NOTICE OF SETTLEMENT

Sir: Please take notice that an order
presented for settlement to the Hon.
on the day of , 20 at M.

of which the within is a true copy will be
one of the judges of the within named Court, at

Dated,
Yours, etc.,

JERRY CHRISAFIS, ESQ.

Attorneys for Plaintiff(s)
21-83 Steinway Street
Astoria, New York 11105

TO:
Attorney(s) for: